

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                         |                           |                                                       |                                               |                                 |
|--------------------------------------------------|-----------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Michael Dever                   | Team:<br>Team # 1                                                                       | CCRB Case #:<br>200506154 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                                                         |                           | <input type="checkbox"/> Abuse                        | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Tuesday, 05/31/2005 5:20 PM  | Location of Incident:<br>Jackie Robinson Pkwy. between<br>Bushwick & Pennsylvania Aves. | 18 Mo. SOL<br>11/30/2006  | Precinct:<br>73                                       |                                               |                                 |
| Date/Time CV Reported<br>Tue, 05/31/2005 5:25 PM | CV Reported At:<br>CCRB                                                                 | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 06/01/2005 3:34 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)  | Shield | TaxID  | Command       |
|---------------------|--------|--------|---------------|
| 1. POM Evan Nielsen | 25916  | 933096 | 73rd Precinct |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name      |
|------------------------|-----------|--------|---------------|
| 1. POF Naquawna Bethea | 08741     | 933552 | 73rd Precinct |
| 2. SGT Hugh Bogle      | 00216     | 922003 | 73rd Precinct |
| 3. POM Jean Severe     | 20204     | 933347 | 73rd Precinct |

| Officer(s)           | Allegation                                                                                  | Investigator Recommendation |
|----------------------|---------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Evan Nielsen | Discourtesy: Police Officer Evan Nielsen spoke obscenely and/or rudely to § 87(2)(b)        | A . Substantiated           |
| B . POM Evan Nielsen | Discourtesy: Police Officer Evan Nielsen acted rudely toward § 87(2)(b) by spitting at him. | B . Substantiated           |
| C . POM Evan Nielsen | Force: Police Officer Evan Nielsen pointed his gun at § 87(2)(b)                            | C . Substantiated           |

### Synopsis

On the evening of 5-31-05, complainant § 87(2)(b) called 911 and reported that he had just been involved in a traffic dispute with another driver on the Jackie Robinson Parkway in Brooklyn and that the man had pulled a gun on him. § 87(2)(b) also stated that he was following the man off the parkway. Officers from the 73<sup>rd</sup> Precinct, POs Nawquana Bethea and Jean Severe, responded to the area and § 87(2)(b) flagged them down at East New York and Rockaway Avenues. § 87(2)(b) pointed out the car of the man with the gun, which had also pulled over on East New York Avenue. The driver of the vehicle identified himself as a New York City Police Officer and POs Bethea and Severe recognized him as PO Evan Nielsen, who is also assigned to the 73<sup>rd</sup> Precinct. SGT Hugh Bogle also responded and, upon being informed of the situation, directed everyone involved to go to the stationhouse, where SGT Michael Minogue of the Brooklyn North Inspections Unit interviewed § 87(2)(b) PO Nielsen, PO Bethea and PO Severe. On 9-22-05, SGT Minogue informed the undersigned investigator that PO Nielsen's case was substantiated § 87(2)(g)

§ 87(2)(g) The undersigned investigator interviewed the same parties, as well as SGT Bogle. The recording of § 87(2)(b)'s 911 call was also obtained. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that all of the allegations be closed as substantiated.

### Summary of Complaint

#### Complainant/Victim – § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black male § 87(2)(b).  
§ 87(2)(b) On 5-31-05, he was wearing a navy blue hooded sweatshirt, blue jeans and brown boots.

#### **911 Call Placed by** § 87(2)(b) (encl. # 17-17B)

According to records from the Communications Division, § 87(2)(b) called 911 on 5-31-05 at 5:25 PM and said, "It's on the, uh, Jackie Robinson Expressway. Somebody just pulled a gun out on me. I'm following behind him right now...Honda Accord license plate § 87(2)(b). When the 911 operator asked what the nearest exit was, § 87(2)(b) replied, "Getting ready to get off the Jackie Robinson at, um, Pennsylvania Avenue right now. I'm just a little scared right now. Could you please have a police officer or patrol car come and meet me over there please?" § 87(2)(b) added, "He said he was a cop. But I didn't have no weapons on me or nothing and he pulled a gun out. I put my hands in the air and told him I didn't have a weapon. He pointed his weapon at me anyway...He started cursing me out and pulled his gun out on me." § 87(2)(b) described the man with the gun as a white male with light blue eyes. For

the next few minutes, he updated the operator as the car he was following drove on Sheffield Avenue, Jamaica Avenue, Sackman Street, Pacific Street and then onto East New York Avenue. At 5:32 PM, there is a sound of tires screeching and § 87(2)(b) is heard saying, "Excuse me officers? This guy pulled a gun out on me..." § 87(2)(b) informed the operator that he had flagged down a marked police vehicle and the call ended.

**CCRB Testimony of § 87(2)(b) (encl. # 9-9C)**

§ 87(2)(b) was interviewed at the CCRB on 6-7-05. He stated that on 5-31-05 at about 5:20 PM, he was traveling from a movie theater in Queens to his residence, which at the time was located at § 87(2)(b) in Brooklyn. § 87(2)(b) was driving his private vehicle, a black Lexus. He was going about forty miles per hour on the westbound side of the Jackie Robinson Parkway in Brooklyn, which is a two-lane road. He passed another car, a gray Honda Accord, on the right and changed lanes to pull into the left lane front of it. The driver of the gray Accord, later identified as PO Evan Nielsen, honked his horn. § 87(2)(b) ignored him and continued driving. Before reaching the Pennsylvania Avenue exit, § 87(2)(b) ran into slow moving traffic in his lane. He then saw PO Nielsen pull alongside him in the right lane and stop. There was no traffic ahead of PO Nielsen. § 87(2)(b) put his hands up as if to say, "What's wrong?" PO Nielsen rolled down his window and said, "You drive like a fucking maniac! You're an idiot!" § 87(2)(b) rolled down his window and said, "Fuck you." PO Nielsen called § 87(2)(b) a "fucking asshole" and a "dumb motherfucker." § 87(2)(b) returned the insults and spit at PO Nielsen and PO Nielsen spit back.

§ 87(2)(b) put his car in park, removed the keys from the ignition and exited his car. He stood up, looked over the roof of his car and said, "What the fuck is your problem?" At that point, § 87(2)(b) observed that PO Nielsen, who was still in his car, was holding a black gun. The gun was tilted sideways and pointed at § 87(2)(b). PO Nielsen said, "Get the fuck back in the car, asshole." § 87(2)(b) put his hands up, with his keys hanging from one of his fingers, and said, "I don't have anything." PO Nielsen replied, "I don't know that. Get the fuck back in the car and drive off." However, § 87(2)(b) did not move because he was so scared and continued to stand outside the car with his hands up. PO Nielsen said, "Get the fuck back in the car, NYPD. Get the fuck back in the car." § 87(2)(b) repeatedly told PO Nielsen that he had no weapons on him, but he continued telling him to, "Get the fuck back in the car" and referred to him as an "asshole" a second time. When § 87(2)(b) did not move, PO Nielsen began driving away slowly, while keeping the gun pointed at § 87(2)(b).

As PO Nielsen drove away, § 87(2)(b) recorded the license plate number of the Honda Accord. § 87(2)(b) got back inside his car, began following PO Nielsen and called 911 using his cellular telephone. He informed the 911 operator that he was following a man who had pulled a gun on him on the Jackie Robinson Parkway. He provided a description of PO Nielsen and his car. § 87(2)(b) was traveling about 30 miles per hour and was one car length behind PO Nielsen. PO Nielsen got off the parkway at the Pennsylvania Avenue exit and § 87(2)(b) continued to follow him. He also updated the operator of his location as he followed PO Nielsen. About a quarter of a mile after exiting the parkway, § 87(2)(b) followed the man through an underpass and onto East New York Avenue.

When § 87(2)(b) reached East New York and Rockaway Avenues, he flagged down two officers in a marked police vehicle travelling in the opposite direction on East New York Avenue, who were later identified as POs Nawquana Bethea and Jean Severe. § 87(2)(b) pointed out PO Nielsen's vehicle and said that he had just pulled a gun on him, at which point the officers made a u-turn and pulled PO Nielsen over at East New York Avenue and Rockaway Avenue. Additional police vehicles began responding, including two or three marked units and a black unmarked vehicle, which was possibly being used by anti-crime officers. After PO Nielsen pulled over, he held an NYPD identification card out of the window of his vehicle. § 87(2)(b)

pulled his car behind the vehicle of POs Bethea and Severe. PO Nielsen left his car and began speaking to the officers. A plainclothes officer approached § 87(2)(b)'s car and asked him what had happened and he told the officer. § 87(2)(b) did not exit his car. Shortly afterward, POs Bethea and Severe told § 87(2)(b) to follow them to the 73rd Precinct stationhouse. At the stationhouse, officers from the Brooklyn North Inspections Unit interviewed § 87(2)(b).

## **Results of Investigation**

### **Subject Officer Testimony – Police Officer Evan Nielsen** (encl. # 10-10B)

*PO Nielsen is a § 87(2)(b) white male and has been an NYPD officer for two years. § 87(2)(b) On 5-31-05, PO Nielsen was dressed in a blue t-shirt with an NYPD Boxing Team logo and shorts.*

PO Nielsen was interviewed at the CCRB on 7-1-05. He stated that on 5-31-05 at about 5:20 PM, he was driving from his home to the 73<sup>rd</sup> Precinct stationhouse, located at 1470 East New York Avenue, where he is assigned. His tour was set to begin at 6:00 PM. PO Nielsen was driving his private vehicle, a 2005 dark gray Honda Accord. PO Nielsen was driving on the westbound side of the Jackie Robinson Parkway, which has two lanes. PO Nielsen was in the left lane and another driver, later identified as § 87(2)(b) was in the right lane, directly opposite PO Nielsen. Another car was in front § 87(2)(b) and PO Nielsen was traveling at the same rate of speed as that car, about 55 miles-per-hour. § 87(2)(b) began to move to the left in an attempt to pass PO Nielsen. His car came within inches of PO Nielsen's car, so PO Nielsen honked his horn and slowed down a bit, which allowed § 87(2)(b) to pull slightly ahead of him. § 87(2)(b) accelerated and moved left, cutting closely in front of PO Nielsen's car. PO Nielsen was forced to brake suddenly in order to prevent the rear of § 87(2)(b)'s car from hitting the front right side of his car. § 87(2)(b) pulled in front of PO Nielsen in the left lane and sped away. PO Nielsen lost sight of § 87(2)(b) and continued driving. As he approached the end of the parkway, traffic slowed down because there is a traffic light at the intersection of Jamaica and Pennsylvania Avenues. PO Nielsen got into the right lane to get off at Jamaica Avenue and became stopped in traffic shortly afterward.

PO Nielsen then noticed that § 87(2)(b)'s car was in the left lane right across from him. He stated that traffic was backed up evenly in both lanes so their cars were almost directly opposite each other. The windows of both cars were down, so PO Nielsen told § 87(2)(b) "You almost got me in an accident back there." § 87(2)(b) replied, "So what? You were going too slow." PO Nielsen told § 87(2)(b) that he was not going too slowly and that he could not drive like that, adding that he almost made him hit the divider. § 87(2)(b) became irate and spit at PO Nielsen through his passenger side window. PO Nielsen asked, "What's wrong with you?" § 87(2)(b) then left his car and began running around the front toward PO Nielsen. He observed that § 87(2)(b) had his left hand on a silver metal object on his hip. PO Nielsen stated that upon seeing the object, he suspected that it might be "a small knuckle" or "a small thin knife," but added, "I really couldn't see it that well." At that point, PO Nielsen pulled up his shirt, put his right hand on his gun and unsnapped his holster. PO Nielsen put his left hand out of his window and yelled, "NYPD, stop! Get back in the car! Police officer! Get back in the car!" § 87(2)(b) stopped at the right front tire of his own car, near the bumper, and put his hands up. At that point, PO Nielsen observed that the silver object was attached to a clip on § 87(2)(b)'s belt. However, he stated that he was still not sure whether § 87(2)(b) possessed a weapon. Upon putting his hands up, § 87(2)(b) said, "I don't have a weapon." PO Nielsen responded, "Good, get back in your car." He denied using any profanity during the incident. PO Nielsen

also denied drawing or pointing his weapon at § 87(2)(b). He stated that § 87(2)(b) might have seen his weapon in the holster when he exited his car and looked down at him.

§ 87(2)(b) returned to his car and PO Nielsen began driving to the stationhouse and § 87(2)(b) began following him. At East New York and Rockaway Avenues, PO Nielsen saw a marked police vehicle go by and tried to flag it down, but was unable to. However, § 87(2)(b) was able to get the attention of the officers and made a u-turn to get behind it. PO Nielsen pulled over and put his shield and NYPD identification card out the window to ensure the officers knew he was a police officer. Shortly afterward, SGT Bogle responded to the scene and directed PO Nielsen to respond to the stationhouse, where officers from the Brooklyn North Inspections Unit formally interviewed him regarding the incident.

### **Witness Officer Testimony**

#### **Police Officers Nawquana Bethea & Jean Severe (encl. # 12-12A & # 14-14A)**

*On 5-31-05, PO Bethea and her partner, PO Severe, were assigned to patrol the business district auto and sector G. They were in marked vehicle # 1390. PO Bethea was the recorder and PO Severe was the operator.*

POs Bethea and Severe were interviewed at the CCRB on 7-8-05 and 8-10-05, respectively. They stated that on 5-31-05 at about 5:25 PM, they received a radio run reporting a man with a gun. The radio run stated that the incident had occurred on the Jackie Robinson Parkway, but the suspect was driving on East New York Avenue at Sackman Street in a dark gray Honda.

When POs Bethea and Severe responded to the location, § 87(2)(b) who was driving in the opposite direction on East New York Avenue, flagged them down. § 87(2)(b) pointed to a gray car, which was waiting at a traffic light at East New York and Rockaway Avenues, and said that the man inside had a gun. POs Bethea and Severe made a u-turn to get behind the car, which pulled over. § 87(2)(b) also pulled over, left his car and told them that the man in the gray Honda had a gun. POs Bethea and Severe did not recall anything else § 87(2)(b) said. § 87(2)(b) then returned to his car. As POs Bethea and Severe approached the gray car, the driver put his head out of the driver side window and displayed his shield. At that point, POs Bethea and Severe recognized the driver as PO Nielsen, who is also assigned to the 73<sup>rd</sup> Precinct. PO Bethea was about to call for a supervisor to respond, but then saw SGT Bogle arriving at the scene.

SGT Bogle spoke to PO Nielsen, but POs Bethea and Severe did not hear the conversation because they returned to their vehicle. SGT Bogle directed POs Bethea and Severe, as well as § 87(2)(b) and PO Nielsen, to respond to the stationhouse. POs Bethea and Severe were interviewed at the stationhouse regarding this incident. POs Bethea and Severe never saw § 87(2)(b) or PO Nielsen at the stationhouse. Neither she nor PO Severe ever discussed the incident with PO Nielsen.

#### **Sergeant Hugh Bogle (encl. # 16-16A)**

*On 5-31-05, SGT Bogle was assigned to supervise officers patrolling the 73<sup>rd</sup> Precinct Business District. This area covers Pitkin Avenue from Howard Avenue to Powell Street and Rockaway Avenue from East New York Avenue to Riverdale Avenue. SGT Bogle and his partner, PO George Luti, were riding in marked vehicle # 1253.*

SGT Bogle was interviewed at the CCRB on 7-11-05. He stated that on the evening of

5-31-05, he heard a radio run reporting that a male in a Honda Accord had a gun. According to the radio run, the incident had started on the Jackie Robinson Parkway and the caller was following the car. Central updated the location of the car as the caller continued to follow it, stating that it was traveling eastbound on East New York Avenue. SGT Bogle and PO Luti began heading in that direction.

About one minute later, they heard POs Severe and Bethea, who were assigned to patrol sector G, announce that they had stopped the car at Rockaway and East New York Avenues. When SGT Bogle arrived, POs Severe and Bethea were speaking separately to § 87(2)(b) and PO Nielsen. PO Bethea approached SGT Bogle and told him that § 87(2)(b) was saying that PO Nielsen had pulled a gun on him on the Jackie Robinson Parkway.

SGT Bogle spoke to § 87(2)(b) who said that one of them had cut the other off on the parkway and they began arguing and cursing at each other. § 87(2)(b) added that they both left their cars and PO Nielsen pointed his gun at him, at which point he put his hands up and returned to his car. SGT Bogle had § 87(2)(b) and PO Nielsen, as well as POs Severe and Bethea, respond to the stationhouse and called the Duty Captain because the incident involved an off-duty officer.

Later on at the stationhouse, § 87(2)(b) told SGT Bogle that he had spit at PO Nielsen. SGT Bogle did not recall whether § 87(2)(b) alleged that PO Nielsen had spit at him. § 87(2)(b) and POs Nielsen, Severe and Bethea were interviewed at the stationhouse regarding the incident. SGT Bogle never discussed the incident with PO Nielsen.

## **Lawsuit**

According to the New York City Comptroller's Office, § 87(2)(b) has not filed a lawsuit in connection with this incident.

§ 87(2)(g)

## **CCRB History of Police Officer Evan Nielsen (encl. # 6)**

PO Nielsen has no additional CCRB complaints on his record over two years on the force.

## **Conclusions and Recommendations**

### **Undisputed facts**

It is undisputed that on 5-31-05, § 87(2)(b) and PO Evan Nielsen became involved in a verbal dispute on the Jackie Robinson Parkway. During the dispute, § 87(2)(b) exited his car and PO Nielsen ordered him to get back inside. PO Nielsen then drove away. § 87(2)(b) drove behind him, called 911 and reported that he was following another driving who had cursed at him and pointed a gun at him on the parkway. § 87(2)(b) followed PO Nielsen off the parkway and onto several other streets before flagging down POs Nawquana Bethea and Jean Severe, who stopped PO Nielsen. Using his shield and identification card, PO Nielsen identified

himself as a police officer. SGT Hugh Bogle arrived at the scene and, after being informed of the situation, ordered all of the parties to respond to the 73<sup>rd</sup> Precinct stationhouse. At the stationhouse, officers from the Brooklyn North Inspections Unit interviewed § 87(2)(b) PO Nielsen, PO Bethea and PO Severe.

§ 87(2)(g)

### Credibility Analysis

§ 87(2)(g)

In *PD v. Pagona and Senuik* (1999), an Administrative Law Judge (ALJ) § 87(2)(g) :

“He presented his testimony articulately and logically, and without hyperbole. He did not exaggerate the nature of the force used, was honest about his own comments and reactions to the police officers, including his own occasional use of profanity...He had no apparent axe to grind with Officer Pagona, and no apparent bias against police officers in general...At the same time, the fact that he made a complaint the very next morning after the incident, as he told Officer Pagona he intended to do, and followed up on that complaint by appearing for a CCRB interview and then appearing here to testify, enhanced his credibility.”

§ 87(2)(g)

§ 87(2)(g)

**A. Discourtesy: Police Officer Evan Nielsen spoke obscenely and/or rudely to** § 87(2)(b)

**B. Discourtesy: Police Officer Evan Nielsen acted rudely to** § 87(2)(b) **by spitting at him.**

§ 87(2)(g)

In *PD v. Dukes and Conway* (2000), an ALJ described the standard for finding misconduct in such cases:

“This tribunal has consistently held that an officer may not use profanity gratuitously, or to intimidate or retaliate or to show a lack of respect for a civilian. On the other hand, when an officer uses profanity in trying to secure a civilian’s cooperation or for other legitimate law enforcement ends, the profanity may not rise to the level of misconduct.”

§ 87(2)(g)

. In *PD v. Matias and Bitchatchi* (2000), an ALJ ruled:

“Respondent’s use of profanity in addressing this complainant was without provocation and reflects poorly upon the Department. Police officers are held to a higher standard than the average citizen and are trained to deal with the public in a courteous manner. Here, respondent’s use of profanity was clearly retaliatory and gratuitous.”

§ 87(2)(g)

It is therefore recommended that allegations A and B be closed as substantiated.

**C. Force: Police Officer Evan Nielsen pointed his gun at** § 87(2)(b)

In his call to 911 and his CCRB testimony, § 87(2)(b) stated that PO Nielsen pointed a gun at him during their interaction on the parkway. PO Nielsen denied pointing his gun. In *PD v. Gliner* (2000), an ALJ discussed the Department’s policy governing an officer’s drawing and pointing his gun:

“The policy of the Department is that an officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another’s personal safety. This policy permits officers to discourage or terminate the attempted use of deadly force against themselves by providing them with a less drastic alternative to the actual use of a firearm. Thus, the Department permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered.”



§ 87(2)(g)

[REDACTED]

[REDACTED]. In *PD v. Abel* (1999), the respondent officer, PO John Abel, was found guilty of improperly pointing his gun at two civilians, § 87(2)(b). The ALJ found that PO Abel, angry at being cut off and at having to slow down, pointed his gun at § 87(2)(b). He then became involved in an angry verbal exchange with § 87(2)(b), during which § 87(2)(b) admitted that she “went ballistic” and PO Abel pointed his gun at her. The civilians subsequently drove after PO Abel in an attempt to stop him. PO Abel testified that he felt threatened because § 87(2)(b) threw something at his car and § 87(2)(b) reached down for something in his car. The ALJ ruled:

“The credible evidence established that respondent did indeed draw and point his revolver without just cause. The record contained no credible evidence that respondent was in any danger when he drew his gun, nor that he could reasonably have perceived that he was in any danger. § 87(2)(b) had no weapon, and engaged in no conduct which would have warranted respondent’s drawing of his gun. Respondent’s claim that § 87(2)(b) reached for something was a transparent, albeit unsuccessful, attempt to justify the improper display of his weapon...I was likewise convinced that respondent’s testimony that § 87(2)(b) window was open and that she hung out of the window and threw something at his car was fabricated in order to justify respondent’s ensuing misconduct.”

The ALJ in *Gliner* described the standard for finding misconduct cases where an officer points his weapon at a civilian:

“The determination as to when that exercise of discretion rises to the level of misconduct must be made by assessing the reasonableness of the officer’s actions in the totality of the surrounding circumstances. While the standard is ultimately an objective one – what a reasonably prudent police officer in the same circumstances would have done – due deference should be given to the judgement of the officer at the time and scene of the incident.”

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]. It is recommended that allegation C be closed as substantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: